

26STCV07751 26STCV07751

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-01

Motion: DEMURRER OF DEFENDANT LOS ANGELES UNIFIED SCHOOL DISTRICT TO PLAINTIFFS' FIRST CAUSE OF ACTION FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

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Case Number: 26STCV07751 Hearing Date: September 1, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

JOHN MCJ DOE, an individual,
JOHN MMJ

DOE, an individual, JANE MID
DOE, an

individual, an individual, JOHN
MEA DOE,

an individual, JANE MAN DOE, an

individual, and JANE MMM DOE an

individual,

Plaintiffs,

vs.

LOS ANGELES UNIFIED SCHOOL

DISTRICT, a California Local
Public Entity;

MARK BERNDT, an individual; and
DOES

1-50,

Defendants.

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CASE NO: 26STCV07751

[TENTATIVE] ORDER RE: DEMURRER
OF DEFENDANT LOS ANGELES UNIFIED SCHOOL DISTRICT TO PLAINTIFFS' FIRST CAUSE
OF ACTION FOR INTENTIONAL

INFLECTION OF EMOTIONAL
DISTRESS

Dept. 731

September 1, 2026

8:30 a.m.

Matter No. 18

[TENTATIVE] ORDER RE:
DEFENDANT LOS ANGELES UNIFIED SCHOOL DISTRICT'S MOTION TO STRIKE PORTIONS OF
PLAINTIFFS' COMPLAINT FOR DAMAGES

Dept. 731

September 1, 2026

8:30 a.m.

Matter No. 18

Moving Party: Defendant, Los Angeles Unified School District

Opposing Party: All Plaintiffs

Notice: OK

Background Facts

Pleading's Allegations

Doe Plaintiffs ("Plaintiffs") sue Defendants

Los Angeles Unified School District ("LAUSD"), Mark Berndt ("Berndt"), and Does 1-50 pursuant to a March 10, 2026, Complaint alleging claims for (1) Intentional Infliction of Emotional Distress, (2) Negligence; Negligent Supervision; Negligent Retention/Hiring; Negligent Failure to Warn, Train or Educate, (3) Sexual Battery, and (4) Sexual Assault.

The claims arise from allegations

that each Plaintiff, while a minor student at LAUSD's Miramonte Elementary School, was repeatedly sexually harassed, molested, and assaulted by Berndt, a long-time LAUSD teacher. Plaintiffs allege that Defendant Berndt abused his authority and access to children over many years to engage in pervasive sexual misconduct, including inappropriate touching, groping, blindfolding students, placing students on his lap, rubbing intimate areas, feeding students cookies and candies believed to contain his semen, and other acts performed for Berndt's sexual gratification. Plaintiffs allege they suffered significant psychological, emotional, and physical harm as a result.

Plaintiffs further allege LAUSD had

extensive prior warnings and notice of Berndt's dangerous propensities—including complaints by students and parents dating back decades, findings of inappropriate conduct observed by administrators, and reports of suspected child abuse that were ignored or concealed. The Complaint asserts that LAUSD repeatedly failed to act, failed to report suspected abuse under mandatory reporting laws, failed to supervise Berndt, and instead allowed him

years of continued unsupervised access to minor children. Plaintiffs allege LAUSD's inaction created an environment that enabled Berndt's serial abuse, violated statutory duties, and foreseeably placed Plaintiffs in harm's way.

The Complaint alleges that LAUSD's failures—including negligent supervision, negligent retention, negligent hiring, failure to warn or train, and failure to comply with mandatory child-abuse reporting requirements—directly contributed to Plaintiffs' injuries. Plaintiffs assert that LAUSD's conduct was extreme, outrageous, and done with reckless disregard for student safety. Each Plaintiff seeks damages for severe and continuing emotional distress, loss of enjoyment of life, educational and economic harm, and medical and psychological treatment costs resulting from the abuse.

Motions Before the
Court

Now before the Court are Defendant LAUSD's opposed (1) demurrer to the Complaint's IIED claim and (2) motion to strike various allegations raised in the Complaint, purportedly irrelevant to the subject matter of this suit.

Demurrer

Meet and Confer

The moving papers establish a sufficient meet and confer process preceded the filing of LAUSD's demurrer. (Omnibus Johnson Decl., ¶¶ 3-7, Ex. A; see Code Civ. Proc., § 430.41, subd. (a)(3)(A).)

b. Legal
Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; see Code Civ. Proc., § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (Committee

on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212, superseded by statute as stated in Branick v. Downey Savings & Loan Assn. (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, Jones v. Lodge at Torrey Pines Partnership (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

Discussion

After review, the Court finds in favor of Plaintiffs.

The heart of the dispute raised in the parties' demurrer papers is whether the Complaint, by way of direct or vicarious liability, alleges sufficient grounds to state a claim of intentional infliction of emotional distress against a public entity, which are traditionally immune from non-statutory claims in California.

Established California authorities exist to resolve the issue. In Lawson v. Superior Court (2010) 180 Cal.App.4th 1372, the court of appeal directly held that an IIED claim against a public entity can survive demurrer via vicarious liability under Government Code section 815.2, provided: (1) the actionable conduct adequately pleads IIED elements, including emotional distress; and (2) no immunity bars the employee's liability. (Lawson v. Superior Court (2010) 180 Cal.App.4th 1372, 1389 ["The State has identified no immunity that would bar the liability of either [employee]."] Accordingly, as long as the Complaint adequately pleads the elements of negligence, negligent infliction of emotional distress and intentional infliction of emotional distress against [the employees], it also adequately pleads the vicarious liability of the State for those causes of action."].)

Here, the Court finds both elements are alleged in the Complaint.

First, the Court is satisfied that the Complaint alleges on its face sufficient facts to state claims of IIED as against unnamed LAUSD supervisory staff. IIED claims require (1) extreme and outrageous conduct by the defendant, (2) with the intention of causing, or reckless disregard of the probability of causing, emotional distress, (3) plaintiff suffering severe or extreme emotional distress, and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-1051.) Here, the Complaint alleges that LAUSD, necessarily via supervisory staff, who could conceivably be sued as Does, failed to take necessary action within their scope of employment in response to warnings of the dangers that Defendant Berndt posed to students, thereby leading to Plaintiffs' injuries at the hands of Berndt and related damages. (See, e.g., Complaint, ¶¶ 31-32(m) [allegations of LAUSD's prior knowledge of Berndt's conduct and danger to students, going back to 1983]; Complaint, ¶¶ 19-22 [inter alia, failure to investigate, remove Berndt, or implement safeguards].) Contrary to LAUSD's reply arguments (see, e.g., Reply, 4:27-5:21), the Court is satisfied that such conduct could be considered extreme and outrageous as against supervisory staff, particularly given the purported long-standing knowledge since 1983 that Berndt posed a danger to students, and the reckless disregard for student safety that continued employment of Berndt posed to students such as Plaintiffs, which actually led to Plaintiffs' harms as alleged in the Complaint. Separately, to the extent that the identities and conduct or omissions of the supervisory staff are arguably vaguely alleged, less particularity of pleading is required where the defendant may be assumed to possess knowledge of the facts at least equal, if not superior, to that possessed by the plaintiff. (See *Burks v. Poppy Construction Co.* (1962) 57 Cal.2d 463, 474.)

Second, LAUSD's papers raise no grounds for immunity barring liability either against itself or employees. The immunity in Government Code section 815, on which LAUSD relies, is qualified by the exceptions in Government Code section 815.2, and the acts and omissions of supervisory staff as discussed in the prior paragraph fall into section 815.2 for pleading purposes. Separately, no overarching bases for immunity are raised in the moving papers beyond section 815. Thus, LAUSD raises no basis for immunity against application of vicarious liability for acts and omissions of employees.

Accordingly, LAUSD fails to raise grounds to show that the Complaint's IIED claim is insufficiently alleged against it.

d. Conclusion

Defendant Los Angeles Unified School District's demurrer is OVERRULED.

Motion to Strike

Meet and Confer

The moving papers establish a sufficient meet and confer process preceded the filing of LAUSD's motion. (Omnibus Johnson Decl., ¶¶ 3-7, Ex. A; see Code Civ. Proc., § 435.5, subd. (a)(3)(A).)

b. Legal Standard

The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (a) strike out any irrelevant, false, or improper matter inserted in any pleading; or (b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc. § 436, subds. (a), (b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)

For the purposes of a motion to strike pursuant to Sections 435 to 437 of the Code of Civil Procedure, the term "pleading" generally means a demurrer, answer, complaint, or cross-complaint, (Code Civ. Proc., § 435, subd. (a)), and an immaterial allegation or irrelevant matter in a pleading entails (1) an allegation that is not essential to the statement of a claim or defense, (2) an allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense, or (3) a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint (Code Civ. Proc., § 431.10, subds. (b)(1)-(3), (c)).

In analyzing a motion to strike, California courts “accept as true the well-pleaded allegations” in the challenged pleadings, as well as “well-pleaded allegations admitted in” the responsive “answer.” (Atwell Island Water Dist. v. Atwell Island Water District (2020) 45 Cal.App.5th 624, 628 (Atwell); Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255 [California courts “read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth”].)

Discussion

LAUSD’s motion to strike seeks relief as against three passages in the Complaint, all of which LAUSD argues are, in essence, not essential to the claims or defenses in Plaintiff’s Complaint. The Court agrees.

Initially, the Court notes that the challenged passages read as paragraphs preceding the identification of parties, basis for venue, factual background, pleaded counts, and prayer for relief in the Complaint. Specifically, the epigraphs appear in the March 10, 2026, Complaint for this action at (1) page 1, lines 24 to 27 (the 2010 case allegation), (2) page 2, lines 2 to 4 (purported quote from 2023 LAUSD court filing), and (3) page 2, lines 6 to 11 (purported 2024 quote from LAUSD court filing).

While Plaintiffs argue in essence that these epigraphs are relevant to this action insofar as they show, among other things, notice of dangers posed to students by Defendant Berndt as determined in a legal action (see Opposition, pp. 3-7), nowhere do Plaintiffs satisfactorily explain how information extrinsic to the allegations in the Complaint for this action is essential to a resolution of claims or defenses in this action, making the epigraphs irrelevant and immaterial information subject to a motion to strike.

d. Conclusion

Defendant Los Angeles Unified School District’s motion to strike is accordingly GRANTED, without leave to amend.

Defendant Los Angeles Unified
School District is ordered to give notice.

Parties who intend to submit
on this tentative must send an email to the court at indicating intention to submit on the tentative
as directed by the instructions provided on the court website at www.lacourt.org. If
the department does not receive an email indicating the parties are submitting
on the tentative and there are no appearances at the hearing, the motion may be
placed off calendar. If a party
submits on the tentative, the party's email must include the case number and
must identify the party submitting on the tentative. If the parties do not submit on the
tentative, they should arrange to appear remotely.

DATED: September 1, 2026 _____

MARK C. KIM

Judge of the
Superior Court